

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff,

Case No: 2021 CC 6858

Civil Division

Landlord/Tenant Action

v.

**MARLIN J. YODER, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF MARLIN J. YODER
AND ALL PARTIES HAVING OR CLAIMING
TO HAVE ANY RIGHT, TITLE, OR INTEREST
IN THE PROPERTY HEREIN DESCRIBED;
AND ALL UNKNOWN UNAUTHORIZED OCCUPANTS,**

Defendants.

_____ /

DEFAULT FINAL JUDGMENT OF POSSESSION

THIS CAUSE having come on for review on Plaintiff's Motion for Default Final Judgment of Possession and the Court having reviewed the pleadings in this matter and being otherwise fully advised in the premises, it is therefore:

ORDERED AND ADJUDGED:

That the tenancy of Defendants Marlin J. Yoder, and If Deceased, All Unknown Parties, Beneficiaries, Heirs, Successors And Assigns of Marlin J. Yoder and All Parties Having or Claiming to Have Any Right, Title, or Interest in the Property Herein Described; and All Unknown/Unauthorized Occupants, who occupy the home located at 900 9th Avenue, E., Lot 168, Palmetto, Manatee County, Florida 34221, in Colonial Manor Mobile Home Park (the "Property"), is hereby terminated, and the Clerk of Court **shall issue a Writ of Possession ten (10) days from the date hereof** directing the Manatee County Sheriff to deliver possession of the Property to Plaintiff and to remove said Defendants,

together with any personal property, from the Property and said Defendants shall be forever removed and barred from entry onto the Property forevermore.

Plaintiff shall be entitled upon execution of the writ of possession to the removal of the Defendants by the Manatee County Sheriff from the subject home and from all of Lot 168 in the park, and Plaintiff shall also upon execution of the writ of possession be entitled to change the locks on the home pursuant to its right to store the home as provided by section 723.062(2), Florida Statutes. By changing the locks, Plaintiff is electing to store the home on the lot as allowed by the statute. Once the locks have been changed, Plaintiff is not required to provide a copy of the new keys to Defendants.

DONE AND ORDERED in Manatee County, Florida, this _____ day of _____, 2021.



eSigned by JACQUELINE STEELE, County Judge 12/29/2021 12:29:30 GRIZNphh

Copies furnished to:

Charles Lovings
Lutz, Bobo, Telfair, Eastman, Gabel & Lee
2155 Delta Boulevard, Suite 210-B
Tallahassee, Florida 32303

TO BE PROVIDED BY ATTORNEY FOR PLAINTIFF

Marlin J. Yoder,
and If Deceased, All Unknown
Parties, Beneficiaries, Heirs,
Successors And Assigns of Bernice
Theresa Langford and All Parties
Having or Claiming to Have Any
Right, Title, or Interest in the
Property Herein Described
900 9th Avenue, E.
Lot 168
Palmetto, Florida 34221

All Unknown/Unauthorized Occupants
900 9th Avenue, E.
Lot 168
Palmetto, Florida 34221